Supreme Court, U.S.
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No. 96-1793

IN THE
Supreme Court of the United States
OCTOBER TERM, 1997

CEDAR RAPIDS COMMUNITY SCHOOL DISTRICT,
Petitioner,

v.

GARRET F.,
A Minor by His Mother and next friend,
CHARLENE F.,
Respondent.

**On Writ of Certiorari to the
United States Court of Appeals
for the Eighth Circuit**

JOINT APPENDIX

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PETITION FOR CERTIORARI FILED MAY 8, 1997
CERTIORARI GRANTED MAY 18, 1998

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UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF IOWA

RELEVANT DOCKET ENTRIES

Date	PROCEEDINGS
January 6, 1995	Complaint (w/notice, consents, LR16 and reports to atty for svc)
May 15, 1995	Answer by defendant
October 30, 1995	Motion by Plaintiff for Summary Judgment and oral argument requested, assigned to Senior Judge Edward J. McManus
October 30, 1995	Statement of Undisputed Material Facts by Plaintiff
December 8, 1995	Cross-Motion for Summary Judgment by Defendants assigned to Senior Judge Edward J. McManus
December 8, 1995	Defendants' Statement of Undisputed Material Facts
March 22, 1996	Order by Senior Judge Edward J. McManus Granting Defendant's Motion for Summary Judgment, Denying Plaintiff's Motion for Summary Judgment
March 22, 1996	Judgment: terminating case; Plaintiff take nothing and that this action be dismissed
April 11, 1996	Notice of Appeal by Plaintiff from District Court decision, (cc: all counsel w/dkt sheet and Notice of Appeal) 8th CCA w/dkt sheets, Notice of Appeal, Order and Judgment

UNITED STATES COURT OF APPEALS
FOR THE EIGHTH CIRCUIT

RELEVANT DOCKET ENTRIES

Date	PROCEEDINGS
December 12, 1996	Argued and Submitted in St. Paul to Judges Pasco M. Bowman, Circuit Judgment, Gerald W. Heany, Senior Judge, Lyle E. Strom, Visiting Judge (U.S. District Court, District of Nebraska, Omaha, Nebraska). Sue Luettjohann Seitz for Appellant Cedar Rapids. Douglas Robert Oelschlaeger for Appellee Garret F. Rebuttal by: Ms. Seitz.
February 7, 1997	The Court: Pasco M. Bowman, Gerald W. Heaney, Lyle E. Strom. Opinion filed by Lyle E. Strom
February 7, 1997	Judgment: Pasco M. Bowman, Gerald W. Heaney, Lyle E. Strom: The judgment of the lower court is Affirmed in accordance with the opinion
May 23, 1997	U.S. Supreme Court notice regarding petition for writ of certiorari. Filed in the Supreme Court on 5/8/97. Supreme Court Case No. 96-1793

[Testimony from Administrative Hearing Dated October 31, 1994]

* * * *

[DIRECT EXAMINATION—CHARLENE FREY]

[BY MR. OELSCHLAEGER:]

[32] Q. Now, is the suctioning something that Garret's friends can also perform?

A. Yes; they do it at home all the time.

* * * *

[33] Q. Do his friends on occasion do the ambu-bag procedure as well?

A. They do it both; they ambu-bag him and suction him.

* * * *

[34] Q. Do his friends assist with feeding and drinking?

A. They have in the past; I mean, they do at home all the time.

* * * *

[36] Q. If the ventilator for some reason stopped working and Garret is at school, is there some way that he can breathe?

A. He could be manually bagged for a long period of time. We bagged him going to Denver the whole trip.

He could also have a backup ventilator there that could be—I mean, if it was going to be a period of time, instead of delaying him from getting back to class or something, he could have a backup ventilator there.

Q. But the ambu-bag procedure would be sufficient to sustain him and sustain his ventilation needs for a period of hours.

A. Yes.

* * * *

[37] Q. Do Garret's friends ever get involved in things such as shutting off alarms on the ventilator?

A. Yes; they're familiar with the same alarm codes or whatever that I would be or anybody that is familiar with Garret.

* * * *

[DIRECT EXAMINATION—DR. REINERTSON]

[BY MR. OELSCHLAEGER:]

[42] Q. The educational process that Garret has been involved in in the years that you have treated him involves an attendant, which takes care of some of his needs, such as suctioning, positioning, needs that he has during the school day. And what I'd like to ask you, Dr. Reinertson, is: Have you come up with—and feel free to look at your file—have you come up with a list of the competencies for that attendant?

A. There have been a couple of occasions; I think, if I'm not mistaken, the first was in '88. That was the first time we had talked with the school about this, and I had written a letter to Mrs. Koehn—

MR. MUELLER: Koehn.

A. Koehn, regarding Garret's experience at school. At that time I wrote a letter detailing the minimal responsibilities in proficiency areas I thought were necessary.

* * * *

[43] A. An annual pediatric CPR certification or recertification of CPR, cardiopulmonary resuscitation.

Q. And you don't have to be a L.P.N. or an R.N. to get that certification, do you?

A. Correct.

MS. SEITZ: Excuse me, Doug. I do not have a list of competencies.

MR. OELSCHLAEGER: I think it's Attachment C to Exhibit 20. I don't know if I misnumbered my exhibits.

MS. SEITZ: I think it's 26; 20 was the draft of the agreement, and 26 is where he can finds it.

* * * *

Q. (By Mr. Oelschlaeger) What was the next competency that you believed was required at that time, Dr. Reinertson?

A. Ability to assess breath sounds by [44] auscultation.

Q. And would you describe for the record what auscultation is.

A. Auscultation is listening with a stethoscope to the lungs.

Q. And what level of nursing expertise or qualification would that require?

A. That certainly can be acquired by a health aide.

* * * *

Q. Then what was the next competency that you believed to exist in July of '88?

A. Ability to recognize the signs and [45] symptoms of respiratory distress and/or hypoxia.

* * * *

Q. And what level of nursing ability or nursing certification would that require?

A. Again, I think a nurse's aide can be trained to recognize these symptoms.

Q. What was the next competency that you believed to exist, Doctor?

A. The ability to care for a tracheostomy, including suctioning and changing of the trach tube.

Q. And Charlene has described for us on the record what that involves. What level of nursing expertise or care does that require?

[46] A. Especially changing the trach tube is a mechanical type of procedure, and this can certainly be taught, I think, again to a nurse's aide.

The suctioning can also be performed by that level of service, and when I mention nurse's aide, obviously anybody above nurse's aide would be able to do this as well.

Q. What was the next compentency that you believed to exist?

A. Ability to bag safely by way of the trach.

Q. And what was the level of nursing competency that that required?

A. Again, the bagging itself can be taught to a nurse's aide.

Q. What was the next competency, Doctor?

A. Working knowledge of any emergency protocols and procedures regarding Garret's case.

Q. What level of care was required there?

A. Again, I believe that that can be performed by a nurse's aide.

Q. And the next competency?

A. Working knowledge of monitors and equipment, such as placement of oxygen delivery [47] devices required. That would be, for example, a mask in case his ventilator was not working, properly checking and calibrating the ventilator setting, troubleshooting of ventilator malfunction, humidity system, to check water level fillant and ability to drain water from tubing; check compressor operation and assessment of suction machine pressure and function.

Q. What level of care is required for that?

A. Again, I think a nurse's aide can do these things.

Q. And then was there some requirements as to documentation?

A. Documenting the observations during school time.

Q. And what level of care was required for that?

A. Any level of care; a nurse's aide would be certainly able to document it.

Q. Now, of the eight competencies reflected on your July 11, 1988 letter, Exhibit 26, are any of those services or competencies required to be performed by a physician?

A. No.

Q. Do you need to be a physician to perform [48] any of those?

A. No.

Q. Dr. Reinertson, I think your next written document on this nursing issue was a health status addendum

in, I believe, July of '93. Do you have that there in front of you?

* * * *

[49] MR. OELSCHLAEGER: That is Exhibit 78, part of Exhibit 78.

Q. (By Mr. Oelschlaeger) Doctor, how did it come that you filled that particular form?

A. Well, to the best of my recollection, I was asked to do this for the school system.

Q. Were you still his treating physician at this time?

A. Yes.

* * * *

[50] Let's refer to the form. First of all, there's a reference there to bladder catheterization once during school hours?

A. Yes.

Q. And what would be the level of nursing competency required for that?

A. A nurse's aide could learn to do that.

Q. Is a physician required to do that?

A. No.

Q. And then we had suctioning of his tracheostomy on an as needed basis; we've already discussed that in connection with the July 1988 report. And then we have, "Food and drink on a regular schedule and as needed." What level of expertise would be required there?

A. Any health aide or below could actually help with that.

Q. A physician is not required for that?

A. Correct.

Q. You discussed bagging again, and that was discussed, I believe, in your July of '88 letter. What level of care is needed for bagging?

A. Health aide may learn to do that.

Q. You don't need a physician for that?

[51] A. Correct.

Q. Then a specific question apparently the district asked there on 7 was: What was your recommendation of

the preparation and qualification of the individuals performing health care procedures in school; and your response says, "A minimum degree of L.P.N. or a skilled care provider who has demonstrated the competencies as described in the '88 letter."

And when you use words, "skilled care provider," is that again reflecting them to a trained nurse's aide of some sort?

A. Correct.

Q. So as of July of '93, it was still your opinion that a physician was not required to do these services?

A. Yes.

* * * *

[53] Q. So in your opinion, the items of care that need to be done for Garret at school are items of care that can be performed by a provider, such as a nurse's aide with appropriate training or an L.P.N., either level of expertise?

A. An L.P.N. with the appropriate training, correct.

Q. And none of those are things that are required to be done by a licensed physician such as yourself?

A. Correct.

* * * *

[CROSS EXAMINATION—DR. REINERTSON]

[BY MS. SEITZ:]

[57] Q. Have you trained Mrs. Frey to provide the care that Garret requires?

A. I have not trained her personally.

Q. But in your judgment, she's needed additional assistance than what she can do?

A. She may need assistance in caring for Garret.

Q. You wouldn't see Garret's friends being able to provide all of the care that he needs?

A. I would think not.

* * * *

[68] REDIRECT EXAMINATION

BY MR. OELSCHLAEGER:

Q. First of all, let me address the issue of the nursing care that the Frey family receives at their home here in Cedar Rapids. You're aware, are you not, that the Freys on weekends have no nursing assistance?

A. Yes.

Q. Does that cause you any great concern as a physician that they perform these various tasks that we've described by themselves?

A. No.

Q. And in fact, if an L.P.N. were to provide these services, the L.P.N. would also need some additional training just beyond the basic L.P.N. degree to perform these services; isn't that true?

A. Correct.

Q. And they would receive basically the same training a nurse's aide would receive to do these services?

[69] A. Correct.

* * * *

[72] [Administrative Law Judge] Is it your testimony that the care given to Garret at school would not require the specialized training of a registered nurse but would instead be someone else who is specially trained; perhaps a licensed practical nurse, perhaps someone just familiar with medical technology and medical procedures but not having specialized training as a nurse? Is that your testimony?

THE WITNESS: That would be accurate, as long as I may add that they are supervised.

ADMINISTRATIVE LAW JUDGE BARTLETT: And what kind of supervision are you talking about?

THE WITNESS: Supervision of—whether it be an R.N. or a physician, someone who they have the ability to contact with questions, should they arise.

ADMINISTRATIVE LAW JUDGE BARTLETT: Would that have to be supervision on site?

THE WITNESS: No.

* * * *

[REDIRECT EXAMINATION] [MRS. FREY]

[BY MR. OELSCHLAEGER:]

[79] Q. Does Garret know when the ventilator setting is off?

A. Yes.

Q. So he can direct his care provider to do [80] something at that point, if that occurs?

A. Yes.

Q. Have adjustments been made to the ventilator at any time in school, to your knowledge?

A. Not to my knowledge, no.

* * * *

[82] Q. I wanted to ask you about your sister; there was some testimony concerning this from Dr. Reinertson. First of all, what's her name?

A. Stephanie Madison.

Q. And how old was Stephanie when she went to Taylor School to do these care things for Garret?

A. I believe when she started she was 18, and into the next part of the year, she was 19.

Q. She wasn't an R.N. or L.P.N. or anything like that at the time?

* * * *

[83] A. No.

Q. Had she had any prior experience nursing?

A. No.

* * * *

Q. We'd also talked before Dr. Reinertson testified about some things Garret's friends can do for him; I

think we discussed suctioning and bagging and the basics of ventilator observation or care.

Do his friends shut off the alarms on the ventillator?

[84] A. Yes.

Q. Do his friends help him use his wheelchair?

A. Yes.

Q. Can they help do other things with the ventilator, such as plug it in or anything like that?

A. Yes; they know when the low power alarms or power switch-over alarms go off, they do know the chair needs to be plugged in. They'll plug it in.

* * * *

[85] Q. Do they recline him in his chair?

A. Uh-huh.

Q. Try to answer yes or no for the court reporter; I know that's difficult sometimes.

A. Yes.

Q. Do they assist in his feeding?

A. Yes.

Q. And his drinking?

A. Yes.

Q. And I assume that Garret can communicate his needs to his friends?

A. Yes, he communicates.

Q. And maybe this isn't clear on the record, but Garret can talk?

A. Yes.

* * * *

[89] Q. And does that nurse, the L.P.N., have any sort of regular supervision by an R.N., to your knowledge?

A. She has somebody supervising her, but not—she comes out, and she may visit twice during the school year.

Q. So in terms of on-site visits by an R.N., it would be twice a year at the school?

A. Yes.

Q. Let's talk about the cost of the nursing care that Garret is getting. First of all, for this school year, the '94-95 school year, what is the cost of the nurse?

A. $22 per hour.

Q. And how many hours per day does the nurse attend to Garret for the school day?

A. Seven hours.

Q. And how many days a year is that?

A. I don't know how many days are in a school year; 180.

* * * *

[CROSS EXAMINATION—MRS. FREY]

[BY MS. SEITZ:]

[131] Q. But there's been a certification by Dr. Reinertson that you need nursing services at home; isn't that correct?

A. From what I heard him say, yes, but there is a reason for it.

Q. Are you receiving a licensed nurse at home?

A. Yes.

Q. And is that an L.P.N.?

A. Yes.

Q. It's not a nurse's aide?

A. No.

* * * *

[REDIRECT EXAMINATION—MRS. FREY]

[BY MR. OELSCHLAEGER:]

[168] Q. Now, you use currently an L.P.N. at home. Would you tell Judge Bartlett why you do that.

A. With the insurance we have right now, their policy, in order to reimburse it, has to be through a licensed agency.

Q. And was the policy you had previously, the Blue Cross/Blue Shield policy, did that pay for services given

by Stephanie Madison, even though she was not a licensed provider?

A. Yes.

* * * *

[175] ADMINISTRATIVE LAW JUDGE BARTLETT: Okay. You indicated that for the first school year your sister assisted Garret at school. What kind of specialized training, if any, did she have to do that?

THE WITNESS: When Garret was in rehabilitation in Denver, Colorado, at the Children's Hospital, she spent some time with us there. And basically, she participated in his care there; she participated in his care initially at the University Hospitals when they let family members get involved with his care, that sort of—I mean, nothing formally.

ADMINISTRATIVE LAW JUDGE BARTLETT: Just [176] things she picked up being with the family in those settings?

THE WITNESS: Uh-huh.

ADMINISTRATIVE LAW JUDGE BARTLETT: So she didn't go to any particular training organization or hospital for that particular training?

THE WITNESS: No.

ADMINISTRATIVE LAW JUDGE BARTLETT: You indicated that Garret sometimes has friends visit him in the home?

THE WITNESS: Yes.

ADMINISTRATIVE LAW JUDGE BARTLETT: How frequently is that?

THE WITNESS: Maybe once or twice after school during the week, and usually every weekend.

ADMINISTRATIVE LAW JUDGE BARTLETT: How have they picked up what the different electronic signals are from the equipment?

THE WITNESS: Basically just being around him, becoming familiar with watching us do it, asking Garret, Garret telling them. We have—if they have indicated by

verbally saying, "I think I could do that," or Garret would say, "Would you [177] like to learn how to do that?" as far as the suctioning, we would explain the procedure and show them how to do it, which they'd seen already, but let them participate in doing it.

* * * *

[DIRECT EXAMINATION—NANCY RAW]

[BY MS. SEITZ:]

[252] Q. Which persons present were medical personnel?

A. A Margie Pence from Mercy Home Health Care; Rhoda Shepherd, the district manager of health services; Candy Krall, who was the school nurse; Mary Simmons, who was also a school nurse but also our special education nurse.

Q. And was Mrs. Frey also present?

A. Yes, she was.

Q. Who participated in the discussion of the actual medical needs and procedures? Did you?

A. No.

Q. Who did?

A. That would have been our nursing staff, Mrs. Frey. It was open for anyone to offer input; those were probably the people that had the most [253] to offer.

I can't remember for sure if comments were made by other members, but they would have been—nursing and Mrs. Frey, in my recollection, were the ones that did.

Q. And did you consider the physician clarifying questions and answers?

A. Oh, yes.

Q. When did you obtain that document?

A. The final list of the questions, Dr. Mueller and I on the way to the meeting at Coolidge drove over to the Frey home and picked up the responses to those questions.

Q. So you only were able to receive them immediately prior to the meeting?

A. Yes.

Q. But they were considered at the meeting?

A. Yes.

Q. This is the IHP that became the subject of this appeal; is that correct?

A. That's correct.

Q. Document 91; is that correct?

A. Yes.

Q. What was the conclusion of the IHP team as to the care that Garret required?

[254] A. That he require continuous care by an appropriate licensed practitioner.

Q. And is that stated on this form?

A. Yes, it is.

Q. And was a rationale given for that conclusion?

A. Yes.

Q. What was that rationale?

A. That Garret requires continued monitoring and assessment, highly technical and extensive nature of care, life-threatening prospect of inadequate care, mastering of numerous competencies.

* * * *

[298] MS. SEITZ: Then we don't need that. We have a stipulation to Exhibit 137, which is comprised of four pages.

The first page shows the cost of hiring a nurse in the Cedar Rapids Community School District for 1993-94. Without Phase II funds, the salary is 26,557; total package, 36,228. The second page is also the cost of hiring a new nurse, no experience, B.A. lane, and the district salary without Phase II is 27,470; total package, 37,270. I'm sorry. I just messed those up those two numbers are nurses at Step 10 on the B.A. lane.

And then we have the same thing with a new nurse. With Phase II it's 19,550 salary; total package, 28,231.

Without Phase II salary is [299] 18,902; total package, $27,492.

* * * *

[Dated November 1, 1994]

[DIRECT EXAMINATION—RHODA SHEPHERD]

[BY MS. SEITZ:]

[331] Q. The conclusion of this IHP indicates that these functions needed to be performed for continuous care by an appropriate licensed—it says practioner, but I think it means practitioner?

A. Right.

Q. Who made that decision that that would be the conclusion of the IHP.

A. I would say that that is a decision of a nurse. You know, I really made that decision based on what I learned from what his needs were.

Q. So you were instrumental in making that determination?

A. Yes.

Q. Why did you determine that Garret needed continuous care and that it needed to be by an appropriate licensed practitioner; what criteria did you use in making that decision?

A. Well, I used my own judgment in terms of what I knew would be required in terms of continuous monitoring and observation of Garret because of his needs.

Q. Was it the observation and monitoring [332] that led you to that conclusion, or was it one of the other functions; that he needed to be fed or needed to have fluids?

A. It was continuous monitoring and evaluation as well as the complexity of his needs.

* * * *

CROSS-EXAMINATION—RHODA SHEPHERD

BY MR. OELSCHLAEGER:

[353] Q. Are the B.S.N.s employed by the district licensed in some way by the State of Iowa?

A. Certainly.

[354] Q. Are they licensed as B.S.N.s or licensed as registered nurses?

A. They're licensed as registered nurses by the Board of Nursing.

Q. So whether someone has a B.S.N. degree or an R.N. degree, it really doesn't matter?

A. It does matter in our district. We hire people who have bachelor of science degrees.

Q. But somebody could be a licensed R.N. and not have that degree?

A. There are licensed R.N.'s who do not have a four-year degree, that's true.

Q. And that progrem, I think, used to be a three-year program?

A. There are two- and three-year programs for registered nurses.

Q. So as far as the State Nursing Board is concerned, somebody with a two-year R.N. degree and a license in the state of Iowa, according to your opinion, could provide these services, even though the district doesn't hire them?

A. In our district we employ people that have bachelors of science degree.

Q. I understand that. My question was this, though: A licensed registered nurse with two [355] years of education could perform these services, in your opinion, in the event that for some reason a B.S.N. couldn't be hired by the district, or is that just something that this district wouldn't allow?

A. I don't believe we'd hire someone that wasn't baccalaureate prepared, because we'd need to be able to use that nurse in other situations once we've hired her.

If Garret no longer requires the care for some reason, she'd still be an employee of the district.

* * * *

[Dated November 14, 1994]

DIRECT EXAMINATION—DR. REINERTSON

BY MR. OELSCHLAEGER:

[627] Q. Dr. Reinertson, after you testified, the district had two nurses testify in their behalf, and I wanted to ask you a couple of questions about a topic that didn't specifically come up during your examination.

First of all, referring to Exhibit 91, the nurse or nurse team made the conclusion on the "Rationale for Decision" section that Garret required continuous monitoring and assessment.

Do you see that on Exhibit 91?

[628] A. This is Exhibit 91?

Q. Yes.

A. Yes, I do.

Q. Based upon your training and education, Dr. Reinertson, and your care of Garrett Frey for the last several years, do you agree or disagree with that statement?

A. I would disagree.

Q. And another statement that was made in your absence by the nurse was that her conclusion, which we just discussed, was based on Physician Clarifying Statements 13 and 14 which appear also as part of Exhibit 91, and I have now directed your attention to those two paragraphs.

Dr. Reinertson, when you made those statements, did you intend to infer that Garret needed continuous monitoring and assessment?

A. No. The only monitoring that I inferred at the time that I wrote these would be that he would require someone within earshot to respond to his needs, not necessarily continuously monitoring.

* * * *

[DIRECT EXAMINATION—GERALD FREY]

[BY MR. OELSCHLAEGER:]

[640] Q. All right. Just describe generally for the judge what a weekend is like with Garret.

A. Well, usually I'll pick him up on Friday night, and he usually takes a friend along, and they spend the weekend.

And depends on what plans we have. If it's raining, we don't do anything. If's its [641] nice out, we try to do something.

Q. Okay. Now, is there a full-time nurse that attends to Garret during the weekends that you have him?

A. No.

Q. You take care of whatever health needs he has?

A. Yeah.

Q. Has that proven to be a satisfactory arrangement?

A. Yes.

* * * *

[DIRECT EXAMINATION—CHARLENE FREY]

[BY MR. OELSCHLAEGER:]

[654] Q. Now, I also wanted to talk a little bit about Garret's time at home. When you're at home with him and there's not a nurse at home, just tell us what it's like.

A. Well, he gets home from school about a quarter till 3. The nurse, depending on what day it is, usually leaves immediately or at quarter after 3.

So from the time quarter after 3 until 11, 11:30 at night, we are alone. We have dinner together. We may go to the grocery store.

Garret has a couple favorite TV programs that he watches. He's a sports nut, so he watches a lot of sports. He plays on the computer. He does his homework. He may have a friend over.

Depending on the weather, he may be outside. We may go outside. And seems like all I've done is rake, but we'll go out there and—and do various things outside.

We may take a walk. He may take a nap; I may take a nap. Just normal—normal stuff.

[655] Q. So there's, I assume, a fair amount of time where you're not just immediately in his proximity?

A. Oh, all the time. He goes outside by himself. He'll go across to the neighbor's across the street by himself. He's taken a walk around the block by himself.

He spends a lot of time by himself, outside, inside. I don't leave him home alone, but I mean there's always —I mean if he goes across to the neighbor's—and in fact, this summer his alarm went off when he was across the street and in their backyard, and I, you know, had the door open. I could hear the alarm.

Q. Okay. And you went over and checked up on it?

A. Yes.

* * * *